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- File No.: EXP202309210

- RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On September 5, 2022, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), as a user of the website <https://pacot.es> with the alias ***USUARIO.1. The basis for the complaint is that the complainant appears in a video that went viral after its publication on ***FECHA.1 in digital newspapers (LA VOZ DE ASTURIAS and EL ESPAÑOL) and on social media platforms such as Instagram, YouTube, and Twitter, having been removed from all of them except for Twitter. The video, the original source of which is unknown, consists of a montage of successive shots in which the affected individual, recorded by someone known to them (as stated in a previous complaint), looks at the camera (...). The video has been widely disseminated and can be easily located with tags such as "****USUARIO.1" or "****USUARIO.2". The affected individual has contacted Twitter to request the removal of the video, but their request was denied on the grounds that the content does not violate Twitter's rules. The requested links are:

Twitter

(...)

Instagram

(...)

Digital newspapers

(...)

YouTube

(...)

Other websites

(...)

The date on which the reported events took place: ***FECHA.1

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Relevant documentation provided by the complainant:

- Emails addressed to TWITTER and their corresponding responses

SECOND: On September 5, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

Regarding the reported publication on the website <https://pacot.es>, it is noted that a precautionary measure for the removal of the reported content was issued in a thread published on the website <https://pacot.es> by the user ***USUARIO.1, directed to the person responsible for this website. On December 21, 2022, a letter was received by this Agency from this responsible party informing that the content has been removed. On January 11, 2023, it was verified that the content had been removed. This website is a non-profit forum (there is no fee for users or advertising) focused on various hobbies such as Video Games, Cinema, Literature, etc., where the content is generated by its users. Therefore, in order to determine the authorship of the publications, a request was made to the person responsible for this website regarding the IP addresses used by the users who published the video and images of the complainant at the time of these publications. On February 13, 2023, a response letter

was received by this Agency informing of the requested internet addresses and adding that, given what happened, they have decided to close the website. This fact was verified by the acting inspector. The holders of the IP addresses reported by the responsible party of the forum pacot.es through TELEFÓNICA DE ESPAÑA, S.A.U., operator of these IP addresses, were identified, and these holders (reflected in the section Investigated Entities as IP Holder 1-5 in pacot.es) were requested to identify the users who published the reported content. Following these requests, on March 30, 2023, a response letter was received by this Agency identifying the user ***USUARIO.1 as the respondent, B.B.B. On the same date, a letter was received from this user stating that they do not believe they remember accessing their user account on the indicated dates and that their privacy may have been violated in the forum.

FOURTH: On July 25, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1,

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of the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6 of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: Once the aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the party being claimed submitted a written statement of allegations in which, in summary, it stated that the claimant did give consent for the dissemination of the video since during the recording the claimant himself, looking at the camera, states his name and is aware of what he is going to do.

The respondent claims that he does not consider himself responsible since he was not the one who made the recording, and that as it is a viral video of great public interest, by disseminating it he has merely exercised his fundamental right to freedom of information, recognized in Article 20 of the Spanish Constitution.

SIXTH: On August 31, 2023, the instructor of the procedure agreed to consider the complaint filed by A.A.A. and its documentation reproduced for evidentiary purposes, the documents obtained and generated during the admission phase of the complaint, and the report of prior investigative actions that are part of procedure AI/00318/2022.

Likewise, the allegations to the initiation agreement of the referenced sanctioning procedure, presented by B.B.B., and the accompanying documentation are also considered reproduced for evidentiary purposes.

SEVENTH: On October 13, 2023, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection sanction B.B.B., with NIF ***NIF.1, for an infringement of Article 6 of the GDPR, classified in Article 83.5 of the GDPR, with a fine of €2,000 (TWO THOUSAND euros). From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: The respondent has disseminated a video on the website <https://pacot.es>, without having the consent of the recorded person, consisting of a montage of successive shots in which the affected person, recorded by an acquaintance, looks at the camera and (...), which constitutes a treatment of his image as a personal data considered illicit, as it does not have his consent.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data

Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is the subject of said Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or camcorders are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of the claimant) carried out by the respondent is in accordance with the provisions of the GDPR.

III

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful, indicating the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child."

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the interested party is a child. The provisions in letter f) of the first paragraph shall not apply to the processing carried out by public authorities in the exercise of their functions.

Regarding the processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and property, as well as their facilities."

IV

In the present case, the dissemination of a viral video following its publication on ***DATE.1 in digital newspapers and social networks is reported.

In relation to the publication claimed on the website <https://pacot.es>, this Agency has confirmed on January 11, 2023, that as a precautionary measure, the claimed content has been removed.

Furthermore, on February 13, 2023, it is reported and confirmed by this Agency that the website has been closed.

On March 30, 2023, TELEFÓNICA DE ESPAÑA, S.A.U., operator of the IP addresses of the website <https://pacot.es>, identifies the user ***USER.1 as the respondent, B.B.B.

The respondent, in response to the request made by this Agency, claims to be the user ***USER.1, but states that he does not remember accessing the website <https://pacot.es> with his user on the date of publication of the video in question.

The respondent considers that there is consent for the processing of the image since during the recording the claimant, looking at the camera, states his name and is aware of what he is going to do; in this regard, it should be noted that such fact does not imply that the claimant consents to his recording, but what is not allowed at all is the indiscriminate dissemination of his personal data over

the internet, which is a subsequent treatment distinct from the recording.

The respondent also indicates that he disseminates the video based on a legitimate interest; however, such legitimate interest does not justify his processing as it contravenes a fundamental right of the claimant, such as his right to honor and dignity, regulated in Article 18 of the Constitution, thus violating what is indicated in Article 6.1 f) of the GDPR.

Additionally, the respondent claims that he does not consider himself responsible as he was not the one who made the recording, and that since it is a viral video of great public interest, by disseminating it, he has merely exercised his fundamental right to freedom of information, recognized in Article 20 of the Spanish Constitution of 1978.

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In this regard, it should be noted that the Constitutional Court ruling STC 6/1988 of January 21 establishes that the rights recognized in Article 20 of the Spanish Constitution (CE) are not absolute and have limitations, as Article 20.1, in its section 4, states the following: “These freedoms have their limit in respect for the rights recognized in this Title, in the provisions of the laws that develop it, and, especially, in the right to honor, to privacy, to one’s own image, and to the protection of youth and childhood.” This means that reference is made to the external limits of freedom of expression, keeping in mind, therefore, the conflict of rights that it poses.

The publication of personal data of individuals on the Internet constitutes the processing of personal data, and therefore, the rules on the protection of personal data will apply.

It should be emphasized that when the information refers to the publication on web pages of personal data, a balancing should occur; otherwise, it would lead to the indiscriminate publication of individuals' data without any limitations.

In this specific case, the respondent publishes personal data of the claimant, such as the claimant's image and voice.

Regarding the respondent's assertion that the publications are protected by freedom of expression and information, we must emphasize that in the conflict between the Fundamental Rights to freedom of expression and freedom of information in relation to the Fundamental Rights to privacy and honor and to the protection of personal data, notwithstanding the preponderance that both our Constitutional Court and the Supreme Court have granted to the former, we must always weigh the elements at play. Because preponderance does not mean prevalence when the limits set by regulations and jurisprudence are exceeded.

In this sense, the Article 29 Working Group in its Opinion 06/2014 on the concept of legitimate interest of the data controller under Article 7 of Directive 95/46/EC, when examining the legal basis of legitimate interest under Article 7.1.f) of Directive 95/46/EC, fully transferable to the current Article 6.1.f) of the GDPR, includes the right to freedom of expression or information as one of the scenarios in which the issue of legitimate interest may arise, asserting that “without prejudice to whether the interests of the data controller will ultimately prevail over the interests and rights of the data subjects when the balancing test is carried out.”

It is not necessary and proportionate if, under any circumstances, any data of any person or professional is published, even if it is not relevant, without being necessary to exercise the right to freedom of expression or information, as is the case here.

This may entail, within the framework of balancing, the impossibility of publishing personal data or any information that makes them identifiable, while also guaranteeing the right to honor and privacy.

Thus, in the balancing of rights, a series of elements must be considered, among which is the relevance of the published information.

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Regarding this matter, the Judgment of the National Court dated April 2, 2019, in its third legal foundation asserts that “Thus, the protection of these other constitutional rights recognized by Article 20.4 of the Spanish Constitution is weakened against the freedoms of expression and information, when exercised in connection with matters of general interest, due to the subjects they refer to and the individuals involved, which consequently contribute to the formation of public opinion, as occurs when it affects public figures who perform public functions or are involved in matters of public relevance, thereby obliged to endure a certain risk that their subjective personal rights may be affected by opinions or information of general interest (Constitutional Court Judgments 107/1988, of June 8 (RTC 1988, 107), 20/2002, of January 28 (RTC 2002, 20), 160/2003, of September 15 (RTC 2003, 160), 151/2004, of September 20 (RTC 2004, 151), and 9/2007, of January 15 (RTC 2007, 9)).”

We also add the Judgment of the Supreme Court dated November 2, 2016, Appeal 2538/2015, which states that the data provided in the information must be necessary for the formation of that public opinion.

It considers in its second legal foundation that although “...both rights [of freedom of information and expression] cannot be reduced to the media, especially when currently the media facilitated by the internet can confer greater social relevance than those (Judgments 79/2014, of May 28, and the aforementioned 39/2016, of March 3),” it understands that “ultimately, the appellant has not even attempted to justify, in response to the request from the affected party for the cancellation of those data in its publication, that those specific data were necessary for the formation of public opinion beyond a purported interest in the work performed by that third party regarding tasks that the appellant values in a particular way but which, in light of what has transpired, does not transcend beyond their own personal motivations.”

In conclusion, and as clarified by the aforementioned judgment, “what prioritizes the right to freedom of expression [over the fundamental right to the protection of personal data] is justified to the extent that the facts are revealed as necessary for the exposition of ideas or opinions of public interest.”

We will add that the Court of Justice of the European Union in the judgment of February 14, 2019, C-345/17, BUIVIDIS, understands, in its paragraph 58, that it cannot be considered that any information published on the Internet, relating to personal data, falls within the concept of “journalistic activities.”

Paragraph 59 adds that it must be verified whether the publication had as its sole purpose the dissemination to the public of information, opinions, or ideas, and its paragraph 62 states that if it turns out that the publication did not have as its sole purpose the dissemination to the public of information, opinions, or ideas, it cannot be considered that the processing of personal data in dispute in the main litigation was carried out “for exclusively journalistic purposes.”

For all these reasons, for a matter to be considered of general interest, of public relevance, it will be so not only because of the person involved but also because of the subject matter it refers to and its effects on shaping public opinion.

The data provided through the information must be necessary to shape that public opinion.

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Upon examining the content of the publications, the respondent reports an event that renders it controversial or personally criticizable.

Public relevance, therefore, does not exist as it solely responds to the personal interest and motivation of the respondent, as the data controller.

From the documents in the file, it does not appear that the respondent has the purpose of disclosing information, opinions, or ideas to the public with the publication of personal data; rather, they publish and comment on the internet a video featuring the image and voice of the complainant that does not correspond to that purpose.

In the present case, we are neither dealing with a person of public relevance, in the sense that such

relevance is sufficient to understand that it entails, ex lege, a dispossession of their fundamental right to the protection of their personal data, nor are we dealing with facts "of public relevance," in the sense that they are revealed as "necessary" for the exposition of ideas or opinions of public interest, whose sole purpose is the dissemination of the same to the public.

Furthermore, the exercise of freedom of expression and information, in cases where it outweighs other rights and legitimate interests of a person, cannot overlook data protection regulations.

In the disseminated video in question, there are personal data that are neither precise for providing information nor for expressing any opinion.

Given these circumstances, this Agency considers that the facts presented, namely, the dissemination of a video that may harm the image of a person, without their consent, means that the processing of their image as personal data may be considered unlawful, thus violating what is established in Article 6 of the GDPR, indicated in legal basis III, which could imply the commission of an infringement classified in Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the limitation period for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

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b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

V

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive."

"Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and

mitigate the possible adverse effects of the infringement;
g) the categories of personal data affected by the infringement;
h) the manner in which the supervisory authority became aware of the infringement, in particular, whether the data controller or processor notified the infringement and, if so, to what extent;
i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor concerning the same matter, compliance with those measures;
j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

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k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
Regarding section k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In accordance with the transcribed provisions, it is appropriate to graduate the sanction to be imposed on the respondent and set it at the amount of €2,000 in accordance with Article 58.2 of the GDPR.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 2,000 euros (TWO THOUSAND euros).

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the

following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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